

Request for Accommodation

Request No.: _____
(Court, Sequential Number)

1. Information about the court case or activity.

Case Number: **87007-6**.

Case Name: Bennett v Manning.

2. Information about the Person Requesting Accommodation.

Name: Zackariah Bennett.

3. Describe the court proceeding or activity you need accommodation for:

I need accommodation to enable equal and meaningful access to the judicial System, and to prevent further discrimination.

4. How are you participating in a court proceeding/activity (check all that apply):

- | | | |
|---|-----------------------------------|--------------------------------------|
| ☒ Party | ☐ Attorney | ☐ Witness |
| ☐ Juror | ☐ Observer | ☐ Other _____ |

5. Describe the disability for which you are requesting an accommodation.

I have ulcerative colitis, and several herniated disks in my back & neck causing nerve impingement.

6. Describe what accommodation you are requesting and explain why this specific accommodation is necessary.

I am requesting appointment of counsel or paralegal. My disabilities, in combination with indigence, make timely legal work nearly impossible, and make the pursuit of justice seem akin to scaling Mt. Everest.

7. Provide any information that you think would help the court respond to your request.

I have filed motions for an order of indigence with the Superior Court multiple times, as well as successfully appealed an improper denial of the same [see: attached] - all to no avail, as the mandate issued by this court received the same result as those I filed subsequently: plainly ignored, left in limbo sans ruling, effectively denied while preventing further appeal on the matter.

According to the “2015 Washington State Civil Legal Needs Study Update,” *“Having a disability was among several traits that doubled the likelihood of discrimination or unfair treatment as compared to other low-income individuals.”* [“Civil Legal Needs Study Update Committee for Washington State Supreme Court, 2015 Washington State Civil Legal Needs Study Update” at 13]

I believe appointment of a suitable representative would be more efficient, and at least as effective, as alternative accommodations, while simultaneously protecting me from the type of discrimination and bullying I have faced so far.

8. Contact information:

Email: zackjbennett@gmail.com.

Mailing address: 17 Old Mountain rd, Goldendale, WA 98620
_____.

Telephone where the court can leave a message
541.300.8792_____.

Other (specify): _____.

What is the best way to notify you about the decision on your request?

☒ email ☐ mail ☐ phone call ☐ other (see above).

Date: 10/29/2024_____ ➤

Zackariah Bennett



Return this form to the Court Contact:

Name) _____

(Title) _____

(Email) _____

(Telephone) _____

(Address) _____

If no one is listed above, return it to the presiding judge of the court.

_____ **Court of Washington**
County of _____

In re:

Petitioner(s)/Plaintiff(s),
and

Respondent(s)/Defendant(s).

Case No. _____

Review and Decision by the Court
(ADADC)

☐ Sealed (ADASD)

(File in the proceedings file, if there is
one, or the administrative file.)

Review and Decision by the Court

Request No.: _____
(Court, Sequential Number)

Accommodation Request Form received: _____
(Date)

Additional information requested: _____
(Date)

Additional information received: _____
(Date)

Type of proceeding/activity:

☐ trial ☐ court hearing ☐ other court proceeding _____

☐ other court activity _____

Requested accommodation granted:

☐ In whole

☐ In part (*specify*)

☐ Alternative (*specify*)

Dates accommodation will be provided:

Requested accommodation denied because:

- ☐ The person requesting the accommodation failed to satisfy the requirements of GR 33 (specify)
- ☐ Court is unable to provide the requested accommodation on the proceeding date and cannot continue the proceeding without significant prejudice to a party (explain, including why proceeding cannot be continued)
- ☐ Permitting the person to participate in the proceeding with the requested accommodation creates a direct threat to the safety or well-being of the person requesting accommodation or others (explain)
- ☐ The requested accommodation creates an undue financial or administrative burden for the court or fundamentally alters the nature of the court service, program, or activity (explain)

Basis for finding: _____

☐ Additional Findings: _____

Notice of the right to file a complaint:

- ☐ Does not apply.
- ☐ Your request for accommodation was denied in whole or in part as indicated above.

You have a right to file an ADA complaint with the U.S. Department of Justice

Civil Rights Division.

Decision about sealing:

☐ This decision is not sealed.

☐ This decision is sealed.

Reason for this decision: _____

The request for accommodation was granted or denied on _____.
(Date)

Person requesting accommodation was notified on _____ by:
(Date)

☐ letter ☐ email

☐ on the record ☐ by phone ☐ other _____

Date signed: _____



(Signature of Court Official)

(Type or Print Name of Court Official)

IN THE COURT OF APPEALS OF THE STATE OF WASHINGTON

MELVINA CATHERINE MANNING,

Respondent,

v.

ZACKARIAH JEREMIAH BENNETT,

Appellant.

No. 84951-4-I

DIVISION ONE

UNPUBLISHED OPINION

PER CURIAM — Zackariah Bennett moved under RAP 15.2 for an order of indigency with regard to a separate appeal, No. 84450-4-I. In that appeal, Bennett seeks review of a domestic violence protection order protecting Melvina Manning.

The trial court denied Bennett’s motion, stating only, “GROUND’S NOT MET UNDER RAP 15.2. MOTION DENIED.” Bennett appeals the order denying his motion, and we now reverse.

Under RAP 15.2(a), “[a] party seeking review in the Court of Appeals . . . partially or wholly at public expense must move in the trial court for an order of indigency.” Because Bennett is not seeking review in a type of case listed in RAP 15.2(b), his motion was governed by RAP 15.2(c). See RAP 15.2(b) (setting forth the procedure when the moving party seeks review in (1) certain criminal prosecutions, (2) dependency and termination cases, (3) commitment proceedings, (4) civil contempt cases directing incarceration of the contemnor,

(5) certain habeas cases, and (6) “any other case in which the party has a constitutional or statutory right to counsel at all stages of the proceeding”); see also RAP 15.2(c) (setting forth the procedure for “cases not governed by [RAP 15.2(b)]”).

Under RAP 15.2(c), “the trial court shall determine in written findings the indigency, if any, of the party seeking review.” If it determines the party is not indigent, then it must deny the motion and must also enter “findings designating the funds or sources of funds available to the party to pay all of the expenses of review.” RAP 15.2(c)(1). If, on the other hand, the trial court determines that the party seeking review is indigent, it must enter findings to that effect and then forward them to the Supreme Court. RAP 15.2(c)(2). The Supreme Court—not the trial court—will then determine whether the party seeking review is entitled to review partially or wholly at public expense. RAP 15.2(d); see also RAP 15.2(c) (party seeking review must demonstrate a constitutional or statutory right to review at public expense, “the right to which will . . . be determined *by the Supreme Court*” (emphasis added)).

Here, the trial court erred by not determining Bennett’s indigency or entering findings as required by RAP 15.2(c). And to the extent the trial court determined the ultimate issue of whether Bennett was entitled to review at public expense, it also erred by deciding an issue that RAP 15.2(c) expressly reserves for the Supreme Court.

We reverse and remand to the trial court for further proceedings consistent with this opinion.

FOR THE COURT:

Dwyer, J.

Cohen, J.

Andrus, J.P.T.